



INTEGRITY PLEDGE BY TM BUSINESS PARTNERS

INTEGRITY PLEDGE BETWEEN TM TECHNOLOGY SERVICES SDN. BHD. (Company No. 200201003726 [571389-H]), having its registered address at Level 51, North Wing, Menara TM, Jalan Pantai Baharu, 50672 Kuala Lumpur, Malaysia ("**TM**") **AND** [Name of Company]
(Company No.), having its registered address at ("**TM Business Partner**").

TM and TM Business Partner are hereinafter referred to individually as "**Party**" or collectively as "**Parties**".

WHEREAS

- A. The Parties confirm their strong commitment to upholding the highest standards of integrity, transparency, and accountability. Both Parties adopt a zero-tolerance approach to bribery and corruption and agree to follow ABAC Law, Internal Codes of Conduct, and Ethical Business Practices. Any act of corruption irrespective of its scale, intent, or consequences, shall be deemed a serious breach of this Integrity Pledge and may lead to immediate consequences. For the purpose of this Pledge:
- (i) "**ABAC Law**" includes all relevant national and international laws, such as the United Kingdom Bribery Act 2010, the U.S. Foreign Corrupt Practices Act, the Malaysian Anti-Corruption Commission Act 2009, and any other laws that apply based on where the Parties or their representatives operate;
 - (ii) "**Applicable Law**" refers to all laws, regulations, and codes that apply to the Parties, their operations, or this Integrity Pledge in any relevant location. This includes, but is not limited to, the ABAC Law;
 - (iii) "**Business Dealings**" means any interaction, transaction, engagement, agreement, negotiation, or any form of commercial or professional activity between the Parties, whether formal or informal, written or verbal, and regardless of monetary value;
 - (iv) "**Business Relationships**" means the overall commercial or professional association between the Parties, whether formal or informal, including all ongoing collaborations, agreements, or dealings;
 - (v) "**Ethical Business Practices**" means conducting business honestly, fairly, and in compliance with Applicable Law and standards, including avoiding any form of bribery, corruption, or improper influence in all business dealings;
 - (vi) "**Internal Codes of Conduct**" refers to the official policies, guidelines, or rulebooks established by each Party that outline expected standards of behavior for employees, agents, and representatives, particularly concerning ethics, compliance, and professional conduct.
- B. By entering into this Integrity Pledge, the Parties agree to carry out all Business Dealings in a fair, transparent, and ethical way free from any improper influence or unfair advantage throughout their entire Business Relationships.

NOW THEREFORE, in light of the above and the mutual commitments made here, the Parties agree to this Integrity Pledge, which will apply to all aspects of their Business Relationships, as set out in the following terms:

ARTICLE 1 – PURPOSE

- 1.1 As part of their ongoing Business Relationship, both Parties agree to take reasonable steps to promote awareness and understanding of anti-bribery and anti-corruption responsibilities among their Related Party. These steps may be updated from time to time as needed and may include, but are not limited to:
- (a) Running programs to raise awareness about bribery and corruption;
 - (b) Helping employees understand the legal and ethical standards they are expected to follow;
 - (c) Introducing or updating Internal Codes of Conduct that clearly state bribery and unethical behavior are not acceptable;
 - (d) Setting up independent systems to monitor and support compliance
 - (e) Encouraging employees at all levels to disclose any personal interests or conflicts of interest;
 - (f) Putting in place procedures to help prevent bribery or other unethical actions by Related Party, based on the situation and with agreement from both Parties.

For the purpose of this Pledge, “**Related Party**” means any director, employee, agent, contractor, subcontractor, or representative acting on behalf of or in connection with either Party in relation to the Business Relationship or any Business Dealing.

ARTICLE 2 - COMMITMENT OF PARTIES

- 2.1 Both Parties confirm that neither they nor their Related Party have offered or will offer any form of bribe, gratification, or improper benefit to anyone connected to the other Party (Related Party) in relation to any business dealing.
- 2.2 To promote transparency, both Parties agree to disclose any payments made, being made, or intended to be made to agents, brokers, or other intermediaries in connection with their Business Dealings, if any.
- 2.3 Each Party also agrees to keep all proprietary and sensitive information shared during the course of their Business Relationship strictly confidential. This information must not be shared with anyone outside the relationship unless required by Applicable Law or specifically approved in writing by the other Party.
- 2.4 Each Party agrees to promptly inform the other Party in writing of any investigations, charges, or legal actions taken against it in connection with bribery, corruption, or related unethical conduct.

- 2.5 Each Party reserve the right, upon reasonable notice and during regular business hours, to request compliance verification through documentation, self-declaration, or audit (where applicable), solely for the purpose of ensuring adherence to this Integrity Pledge.
- 2.6 Each Party undertakes to disclose in writing any actual, potential, or perceived conflict of interest that may arise in connection with the Business Dealings. This includes any relationship, interest, or involvement direct or indirect with any personnel, Related Party, Competitor, or subsidiary of the other Party that may impair or be seen to impair their objectivity or business judgment. Both Parties agree to address such situations in good faith to ensure transparency, fairness, and integrity in the business relationship.

ARTICLE 3 – PENALTY

- 3.1 Throughout the Business Relationship, both Parties agree that neither they nor their Related Party will engage in bribery or any form of corrupt activity.
- 3.2 If bribery or corruption is suspected or discovered, actions will depend on the nature of the finding:

3.2.1 Internal Finding:

If an internal investigation conducted fairly and in good faith under established procedures concludes that one Party has been involved in bribery or corrupt practices related to the business relationship, the other Party may take temporary actions, such as:

- (a) Suspending the Party from participating in current or future tenders;
- (b) Temporarily pausing any ongoing Business Dealings;
- (c) Reporting the matter to the relevant authorities;
- (d) Taking internal disciplinary or corrective measures in line with the respective Party's policies;
- (e) These actions are temporary and do not affect any final outcome determined by Applicable Law or a court.

3.2.2 Court Conviction:

If a Party or its representative is found guilty by a court of law (with no further appeal possible) of bribery or corruption related to the business relationship, the other Party may take more serious steps, including:

- (a) Immediately ending any contracts in place and denying future contract awards;
- (b) Forfeiting or withholding bid securities or performance bonds (if applicable);

- (c) Seeking full compensation for any losses or damages;
- (d) Permanently banning the Party from future tenders or partnerships; and/or
- (e) Taking any other legal action allowed by law or internal company policy.

For the purpose of this Integrity Pledge, “conviction” refers to a final judgment by a court that cannot be appealed.

ARTICLE 4 - INTEGRITY PLEDGE DURATION

- 4.1 This Integrity Pledge takes effect on the date it is signed by the last Party and will remain in force for as long as the Business Relationship between the Parties continues.
- 4.2 The Integrity Pledge will remain valid until:
 - (a) One Party is no longer engaged in a Business Relationship with the other Party; or
 - (b) The Integrity Pledge may be formally terminated by either Party by providing written notice to the other Party with at least thirty (30) days’ prior written notice. Such notice must include the reason(s) for termination and be acknowledged in writing by the receiving Party. Termination shall not affect any rights, obligations, or liabilities accrued prior to the effective date of termination and shall not be exercised unreasonably or in a manner that circumvents ongoing investigations or known breaches of this Integrity Pledge.
- 4.3 This Integrity Pledge shall be reaffirmed by both Parties via signing an updated form, or an annual declaration, where applicable, upon each renewal of registration by TM Business Partners with TM, to participate in the request for quotation (RFQ), tender exercise, or entering into any contract or agreement. This reaffirmation signifies both Parties’ continued commitment to ethical conduct, transparency, and zero tolerance for corruption in all Business Dealings or Business Relationship between them.

ARTICLE 5 - WHISTLEBLOWING CHANNEL

- 5.1 To uphold the highest standards of integrity and accountability, the Parties commit to providing accessible and confidential channels for reporting any concerns related to unethical conduct, including but not limited to:
 - (a) TM Whistle-blowing Channel, as specified below:

TM Ethics Line	Tel	:	1-800-88-2377 (Malaysia Only)
	Email	:	ethic@tm.com.my
 - and/or
 - (b) Any whistleblowing channel that is available to the affected Party.

- 5.2 The Parties ensure that all reports will be handled with the utmost confidentiality and in accordance with Applicable Law. Whistleblowers will be protected from retaliation, and their identities will be safeguarded to the extent possible.
- 5.3 The Parties are committed to investigating all reports promptly and taking appropriate action as necessary.

ARTICLE 6 – MISCELLANEOUS

- 6.1 This Integrity Pledge is governed by the laws of Malaysia.
- 6.2 Any dispute arising out from this Integrity Pledge may be addressed in the courts of Malaysia. Both Parties agree to this exclusive jurisdiction of the courts of Malaysia.
- 6.3 If a penalty is imposed under Article 3, the Parties may negotiate an amicable settlement, provided such negotiations do not override any established breach of ABAC Law. If no resolution is reached within thirty (30) days from the initiation of negotiations, liability will be determined based on the findings or court conviction.
- 6.4 Any changes, additions, and termination of this Integrity Pledge must be in writing and signed by both Parties.
- 6.5 If any provision of this Integrity Pledge is found invalid, the remaining provisions remain valid. In case of inconsistency between this Integrity Pledge and any definitive agreement between the Parties, the provision herein shall prevail.

IN WITNESS WHEREOF, the undersigned represent that they are duly authorized to execute this Integrity Pledge on behalf of their respective organisations. This Integrity Pledge shall be effective as if the date of the last signature and shall apply to all present and future dealings between the Parties.

For and on behalf of TM Technology
Services Sdn. Bhd. (Company No.
200201003726 [571389-H]):



Name: NAZRIZAM MAT JIN
Designation: GENERAL MANAGER, NCIS GP
Date:

For and on behalf of the TM Business
Partner.....
.....
(Company No.)

Name:
Designation:
Date:

in the presence of:

in the presence of:



Name: NIZAM KHAN BIN AHMAD KHAN
Designation: ASSISTANT GENERAL MANAGER, NCIS GP
Date:

Name:
Designation:
Date:

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